

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF VIRGINIA

Civil Action No. SYN-WDVA-25-CV-0733

Civil Cover Sheet, Summons, and Waiver Packet

Filed April 7, 2025, by Mara Ellison.

Civil cover information

Plaintiff Mara Ellison commenced a federal civil-rights action arising from a February 3, 2025 police welfare encounter in Alder Creek, Virginia. The initial defendants were Officer Nolan Rusk in his individual capacity, the City of Alder Creek, and Chief Samuel Orton in the capacities stated in the complaint. The filing invoked 28 U.S.C. §§ 1331 and 1343 and 42 U.S.C. § 1983.

The nature-of-suit classification is civil rights, other. The complaint alleges Fourth Amendment excessive force and related theories described in the pleading; it demands a jury trial. The incident occurred at Larkspur Court Apartments, 1844 Holloway Road, within the district. No related federal action, multidistrict proceeding, bankruptcy matter, or citizenship-based basis for jurisdiction was identified.

This cover information is administrative. It does not add a cause of action, establish venue, or adjudicate any allegation. Later pleadings control the parties and claims that remain.

Initiation packet — summons requests

Ellison requested issuance of summonses directed to Officer Nolan Rusk, the City of Alder Creek, and Chief Samuel Orton at the service addresses supplied confidentially to the Clerk. The public packet identifies the Alder Creek Police Department as the organizational location but does not publish a private residential address.

Each proposed summons states the district docket number, names the served defendant, identifies Ellison as plaintiff, and explains the time to answer or otherwise respond under the Federal Rules of Civil Procedure. The forms direct responses to the Clerk and caution that failure to respond may result in judgment as provided by law. They contain no admission that service has already occurred.

The Clerk's issuance notation authenticates only the form and case number. It does not establish the truth of the complaint, personal service, waiver, or a deadline calculated from a completed service event. Proofs or waivers are separately recorded when returned. The subsequent amended complaint and responsive pleadings determine the operative litigation posture; this page remains in the designated record to document how the case began.

Initiation packet — requests to waive service

Ellison included Rule 4(d) waiver requests for the three original defendants. Each request encloses the complaint, identifies the district court and docket, gives the date sent, states the response period, and explains the consequences of waiving or declining formal service. A waiver concerns service mechanics and does not waive a defense to the merits or jurisdiction other than objections foreclosed by the rule.

Counsel's transmission log states that the requests and complaint were sent through agreed official or counsel channels after docket opening. This compiled packet does not represent that a waiver was executed on April 7. The district docket records later appearances and responses rather than using this initiation item as proof of a particular return date.

The parties eventually litigated without a remaining service dispute. Ellison later amended her pleading, and the City and Chief were dropped, leaving the individual excessive-force claim against Rusk. Their original listing here is historical, not a representation that they remained parties when summary judgment was decided. The packet supplies initiation context only and has no bearing on whether the body-camera footage resolves resistance or whether Rusk is entitled to immunity.